Executive Order.

The Consular Regulations are hereby amended as follows:

A new paragraph, to be known as 422½, is added after paragraph 422, to read as follows:

422½. *Registration of births of Americans.*—Consular officers are required, upon application, to record the birth of American children abroad. They should impress upon American citizens resident in their respective districts the desirability and importance of a prompt registry of such births. The consul will record the name and sex of the child, the date and place of birth, the names and residence of the parents, together with such other facts concerning them as will fully establish the identity and citizenship of the child. He will furnish the registrant a copy of the record, and also transmit a copy thereof to the Department of State. No fee shall be charged for the registration of a birth, nor for the issuance of a copy of the record thereof.

Paragraph 429 is amended to read as follows:

429. *Form for supplies.*—A form of requisition for office supplies, and a schedule of such supplies as are usually carried in stock, are furnished to consular officers by the Department. Requisitions for supplies should describe the articles called for by schedule number, as well as by name, and the quantities desired are to be stated in figures, as per schedule, and in the order indicated therein. If less than an original package is required, the quantity should be stated in fractions thereof. The requisition should be carefully drawn, with due regard to economy, and should cover as far as possible a supply for a year or half year.

Seals, coats of arms, and other articles not mentioned on the schedule should be added at the end of the requisition, or, if necessary, on a separate sheet accompanying the same.

No despatch is necessary in transmitting these requisitions to the Department.

Paragraph 431 is amended to read as follows:

431. *Inventory required.*—Every consular officer in charge of an office shall keep on record in the office and furnish the Department with a detailed inventory of all government property in his custody, including record books and archives.

An inventory must be submitted to the Department by the officer in charge upon the establishment of a new consular office; upon instructions from the Department or from the consul general at large acting under authority of the Department, when the inventory previously prepared is in improper form; or upon the transfer of an office from one consular officer to another.

A retiring consular officer will not be given a certificate of non-indebtedness to the Government until the provisions of the regulations respecting inventories have been fully complied with.

No government property shall be disposed of nor removed from the inventory without the authorization, in advance, of the Department. The penal code of the United States (35 Stat. L. 1112.) provides: "Whoever, having the custody of any record, proceeding, map, book, document, paper or other things specified in the preceding section (the preceding section of the statute specifies any such things which may be "in any public office"), shall willfully and unlaw-

fully conceal, remove, mutilate, obliterate, falsify or destroy any such record, proceeding, map, book, document, paper, or thing, shall be fined not more than two thousand dollars, or imprisoned not more than three years, or both, and shall moreover forfeit his office and be forever afterward disqualified from holding any office under the Government of the United States."

Paragraph 432 is amended to read as follows:

432. *Preparation and recording of inventory.*—The inventory must be prepared with the typewriter, on form 223, in three sections, designated respectively: "Furniture and Furnishings"; "Reference Books"; and "Record Books and Archives". It shall be signed and certified as correct by the officer preparing it.

After being prepared, the inventory must be copied in the "Miscellaneous Record Book", sufficient space being left at the end of each section to permit of future entries upon supplementary inventories. Having been once recorded in correct form it is not necessary to recopy it in succeeding volumes of the "Miscellaneous Record Book", but a reference should always be made in the current volume to the one in which the inventory appears.

After being recorded in the manner stated above a copy of the inventory must be forwarded to the Department, a copy filed in the office files, and a third copy kept on hand for the use of the consul general at large in making his inspection.

Paragraph 433 is amended to read as follows:

433. *Transmission of inventory upon transfer of office.*—Upon the transfer or departure of the officer in charge of a consulate, except on leave of absence, a copy of the inventory, corrected to date and signed jointly by the outgoing and incoming officer, shall be transmitted to the Department. When there is an ad interim charge of an office, pending the arrival of an officer permanently assigned to it, the inventory should be duly prepared and signed jointly by the outgoing officer and the officer temporarily in charge; but it should be retained for examination, for any necessary notation, and for the signature of the newly assigned officer, and be by him forwarded to the Department as soon after his arrival as possible. Should he find any discrepancies between the number and descriptions of the articles listed in the inventory and those actually on hand, he will report the matter to the Department, and submit a statement by the temporary officer relative thereto.

A new paragraph, to be known as 433½, is added after paragraph 433, to read as follows:

433½. *Supplementary inventory.*—During such time as an officer continues in charge of a post, a correct inventory having previously been submitted, he will prepare and transmit to the Department at the end of each fiscal year a supplementary inventory including all property acquired, and all records or files added to the archives during such fiscal year.

Paragraph 440 is amended to read as follows:

440. *Relative rank.*—The order of official precedence in the service is as follows: (1) Consuls General; (2) consuls; (3) vice consuls de carriére, and interpreters; (4) consular assistants and student interpreters when commissioned as vice consuls; (5) vice consuls not of career; (6) consular assistants and student interpreters when not commissioned as vice consuls; (7) consular agents.

Paragraph 445 is amended to read as follows:

445. *Matter transmitted in Government pouches.*—The following matter may be transmitted in government pouches, and none other, except as may be specially authorized by the Department of State from time to time.

(1) Despatches, official communications, reports, printed matter and packages for the Department of State or for transmission to other departments or branches of the Government.

(2) Letters, communications, reports, printed matter and packages for individuals or firms required to be handled in the performance of official duties. Matter coming under this head should not bear postage.

(3) Except when the United States is at war, private letters of consular officers and members of their immediate families, their assistants and clerks, if of American nationality, to their families and friends in the United States; also private letters of representatives of any other branch of the Government of the United States, their assistants and clerks, if of American nationality. On all matter coming under this head full foreign postage must be prepaid in the same manner as if it were forwarded in the open mail. Postage stamps of the United States must not be used on such matter.

Paragraph 446 is canceled.

Paragraph 447 is canceled.

Paragraph 454 is canceled.

Paragraph 455 is canceled.

Paragraph 458 is canceled.

Paragraph 459 is canceled.

Paragraph 461 is amended to read as follows:

461. *Use of the telegraph.*—The use of the telegraph at the expense of the Government is restricted to cases of urgency, and to those in which some injury to the public interests would result from delay. It is not permitted in the ordinary business of a consulate, or in communicating with the Department of State, except when justified by the importance and urgency of the case, or when it is done under instructions from the Department.

Applications by telegraph or cable for leave of absence and telegraphic replies thereto will generally be at the expense of the consular officer.

Whenever possible telegrams should be sent in code for the purpose of economy, even if the nature of the message does not otherwise require it. Extreme care must be exercised to observe the regulations governing the use of departmental codes set forth in the introductions to those books.

Telegrams of a non-official character, dealing with matters of personal interest to citizens of the United States, and sent at their solicitation, are to be sent only at the expense of the citizens in question, and may be transmitted only after prepayment of the charges, or satisfactory assurance of payment. A telegraphic reply is charged to the person on whose account the original message was sent.

Paragraph 462 is canceled.

Paragraph 463 is amended to read as follows:

463. *Circulars of consular officers.*—All circulars issued over the signature of a consular officer must be submitted to the Department of State and receive its approval before publication.

Paragraph 464 is amended to read as follows:

464. *Forms.*—The forms prescribed by the Department of State are to be used in the cases to which they apply; and consular officers are forbidden to alter them without permission and the approval by the Department of State of the substitute offered. Suggestions for the improvement of forms are, however, invited, and they will always receive consideration. Exact translation of English forms into the language of the country to which the consul is accredited is not within this prohibition, where the local conditions require translation.

Paragraph 467 is amended to read as follows:

467. *Conditions under which leave is granted.*—Leave of absence is granted, within statutory limitations, at the discretion of the President, acting through the Secretary of State. Leaves are of two kinds, simple leave, and leave with permission to visit the United States. The granting of a simple leave of absence does not carry with it permission to return to the United States. A consular officer must receive express permission to return, in order to entitle him to the benefit of the statutory allowance of salary in transit.

Simple leave of absence with salary may be granted for not more than thirty days in any one year, except in the event of illness on the part of the officer or a member of his family, or under other exceptional circumstances, when simple leave with pay may be extended to a total of sixty days in one year, but no longer.

Leave of absence with permission to visit the United States for not to exceed sixty days in any one calendar year may be granted with salary not oftener than once in two years, except (1) in the case of consular officers in remote places, who may be granted continuous leave covering parts of two successive years, provided not to exceed sixty days is granted in either year; and (2) also in cases where the health of officers requires that they should be absent from their posts, when continuous leave not to exceed sixty days in either year may be granted covering parts of two successive years. Whenever leave of absence is claimed to be necessary on account of illness it is desirable that a certificate of the physician in attendance be forwarded to the Secretary of State.—R. S. Secs. 1740, 1742.

Leave of absence with permission to visit the United States is granted exclusive of the time actually and necessarily occupied in transit by the most direct route from the officer's post to his residence in the United States and return to his post. Salary for said transit period will be paid in addition to the salary for the duration of the leave of absence.—R. S. Sec. 1742; 14 Comp. Dec. 61. Salary will not be paid for more than one transit period in any one year (10 Comp. Dec. 465; 11 Comp. Dec. 123.) except that when all or part of a transit period occurs in a calendar year other than that in which the leave of absence was taken it will not impair the right of the consular officer to another transit period during that calendar year if leave should be granted.—14 Comp. Dec. 61.

If consistent with the public interest leave of absence, for good reason, may be granted for a longer time than that stipulated in the foregoing, but without compensation.—R. S. Sec. 1742.

Paragraph 470 is canceled.

Paragraph 471 is canceled.

Paragraph 472 is amended to read as follows:

472. *Leave of absence of vice consuls, interpreters and consular assistants.*—The regulations in regard to leave of absence of consular officers (Paragraph 467) are applicable to vice consuls *de carriere*, interpreters and consular assistants. Such officers should apply to the Secretary of State for leave, and their applications should be transmitted through, and have the approval of, the principal officer under whom they may be serving. In cases of emergency the principal officer may grant them conditional leave, reporting the fact to the Secretary of State for approval.

A vice consul not of career should make application for leave of absence to his principal officer when the latter is at his post and in charge of the office, and the principal officer may grant leave to the vice consul, reporting the fact to the Secretary of State.

When a vice consul is in charge of an office he should apply to the Secretary of State for leave in the same manner as if he were the principal, and if for any reason, such as the non-arrival of another officer to relieve a vice consul, it should become necessary to leave the office temporarily in charge of someone not regularly appointed, the vice consul should obtain the approval of the Secretary of State, and the name and authenticated signature of the person left in charge should be forwarded immediately to the Secretary of State.

Leave of absence of vice consuls not of career, who receive compensation as clerks (Paragraph 41) is subject to the limitations governing leave of absence of clerks set forth in paragraph 473.

Paragraph 475 is canceled.

Paragraph 476 is amended to read as follows:

476. *Interpreters and marshals.*—An interpreter not of career, or a marshal, should apply for leave of absence through the consular officer in charge of the post. There is no provision of law for appointment by the consular officer of a substitute to perform the duties of the absent interpreter or marshal and receive his salary.—Bowler's 1st. Comp. Dec. 168; 2 Comp. Dec. 455.

Paragraph 477 is amended to read as follows:

477. *Time in transit.*—The Secretary of State is authorized to establish, determine, and make public the maximum amount of time actually necessary to make the transit between each consular post and the city of Washington, and vice versa, and from time to time revise his decision in this respect; and the allowance for time actually and necessarily occupied by each consular officer who may be entitled to such allowance shall in no case exceed that for the time thus established and determined, with the addition of the time usually occupied by the shortest and most direct mode of conveyance from Washington to the place of residence in the United States of such officer.—18 Stat. L. 70, Sec. 4.

With the exception of cases in which specific orders to the contrary are issued in writing by the Department of State, the transit period within the meaning of the statute will be construed to be the time actually and necessarily occupied in making direct transit between the officer's place of residence and his post of duty, or vice versa.

Paragraph 478 is canceled.

Paragraph 482 is amended to read as follows:

482. *Under Federal laws.*—Every consular officer of the United States is required, whenever application is made to him therefor, within the limits of his consulate, to administer to or take from any person any oath, affirmation, affidavit or deposition, and to perform any other notarial act which any notary public is required or authorized to perform within the United States.—34 Stat. L. 101. Such acts, in order to be valid and effectual, must be certified by the consul under his hand and seal of office.—R. S. Sec. 1750.

Paragraph 484 is amended to read as follows:

484. *Fees for notarial services.*—Consular officers shall charge for every notarial act performed by them the appropriate fee prescribed by the President under section 1745, Revised Statutes.

Paragraph 487 is amended to read as follows:

487. *Patent applications.*—The oath to an application for a patent, to be filed in the United States, when the applicant resides in a foreign country, may be made before a consul of the United States or before a notary public, judge, or magistrate having an official seal and authorized to administer oaths in the foreign country in which the applicant may be, whose authority shall be proved by the certificate of a diplomatic or consular officer of the United States.—R. S. Sec. 4892.

Paragraph 488 is amended to read as follows:

488. *Verification of powers to transfer notes and bonds of the United States.*—Powers of attorney executed in a foreign country for the transfer of any note or bond of the Government of the United States, or for the receipt of interest thereon, shall be verified by the certificate and seal of a consular officer, if any there be, at the place where the same is executed.

No fee is to be charged by consular officers for witnessing the execution and taking the acknowledgment of assignments of notes and bonds of the Government of the United States, or of powers of attorney to assign such notes or bonds, or to collect the interest thereon.

A new paragraph, to be known as 488½, is added after paragraph 488, to read as follows:

488½. *Authentication of pension papers.*—The Commissioner of Pensions is authorized by statute to accept the declarations and other papers of pension claimants residing in foreign countries made before a United States minister, or consul, or other consular officer, or before some officer of that country duly authorized to administer oaths for general purposes, and whose official character and signature shall be duly authenticated by the certificate of a United States minister, or consul, or other consular officer.—27. Stat. L. 272, Sec. 2.

All United States officers now authorized to administer oaths are required and directed to administer any and all oaths required to be made by pensioners and their witnesses in the execution of their vouchers for their pensions free of charge.—25 Stat. L. 782.

CALVIN COOLIDGE

THE WHITE HOUSE,
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